

25TRCV03358 25TRCV03358

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-15

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Case Number: 25TRCV03358 Hearing Date: July 15, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

DAVID
SCHACH, an individual

Plaintiff,

Case No.:

25TRCV03358

vs.

[Tentative]
Granted

THOMAS
BENNETT, an individual; PAUL BOHN, an individual; and DOES 1-10, inclusive,

Defendants.

Hearing

Date: July

15, 2026

Moving Parties: Defendants Thomas Bennett and Paul
Bohn

Responding Party: Plaintiff David Schach

HEARING: Motion to Compel Further Responses
to Requests for Admission

The
Court considered the moving, opposition, and reply papers.

RULING

The Court
grants the Motion to
Compel Further Responses to Requests for Admissions.

BACKGROUND

On October 1, 2026, Plaintiff David
Schach filed the Complaint against Defendants Thomas Bennett and Paul Bohn,
alleging causes of action for conversion and injunctive relief.

On March 2, 2026, Defendants served
the subject discovery on Plaintiff.

On April 6, 2026, Plaintiff served
responses.

On June 9, 2026, Defendants filed
the Motion to Compel Further Responses to Requests for Admissions.

On June 30, 2026, Plaintiff filed
the Opposition.

On July 8, 2026, Defendants filed the Reply.

LEGAL STANDARD

The propounding party may file motions to compel further responses to requests for production if it believes the responses received are (1) evasive, (2) incomplete, or (3) if the objections raised are meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a

The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) In response to a motion to compel further responses, the respondent bears the burden of justifying any objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

DISCUSSION

Defendants request that the Court order Plaintiff to provide further responses to Defendant Bennett's First Set of Requests for Admission, Nos. 4, 6, 7, 8, and 9, and to Defendant Bohn's First Set of Requests for Admission, Nos. 4, 5, and 6.

Meet and Confer

A motion to compel must be “accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., 2031.310 subd. (a).) Section 2016.040 states that “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., 2016.040.)

On June 3, 2026, Defendants sent a meet-and-confer letter regarding the subject discovery, to which Plaintiff failed to respond. Therefore, the Court finds that Defendants have satisfied the meet and confer requirements.

Timeliness

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission.” (Code Civ. Proc. § 2033.290 subd. (c).)

Plaintiff

argues that the instant is untimely as no extension was granted. However, Defendants have provided the declaration of their counsel, who states that an extension was granted until June 9, 2026, through text message; the message has also been attached. (Nelson Decl. Exhibit A.) Thus, the Court finds that the instant motion is timely.

Merits

Here, the Court has reviewed the subject discovery requests and finds them relevant. Furthermore, the Court finds that Plaintiff's responses are not code compliant and that Plaintiff has failed to justify his objections.

Therefore, the Court grants the Motion to Compel Further Responses to Requests for Admissions.

Sanctions

Code of Civil

Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction on a party engaging in the misuse of the discovery process to pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. A misuse of the discovery process includes failing to respond or to submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).)

Plaintiff requests

that the Court impose monetary sanctions on Defendant in the amount of \$652.70. However, as Defendant's motion was successful, the Court finds no justification

for imposing sanctions on Defendant.